

ASCII MASTER FLOW – PANEL 1/9: Responsible State government under Articles 153-167

PEOPLE → LEGISLATIVE ASSEMBLY → CONFIDENCE → CM & COUNCIL

|

v

GOVERNOR GIVES LEGAL FORM

ARTICLE MAP

153 Governor | 154 executive power | 155 appointment | 156 term/pleasure

157 qualification | 158 conditions | 159 oath | 161 clemency | 163 advice/discretion

164 ministers/responsibility | 165 Advocate General | 166 business | 167 CM duties.

CORE RULE

Governor is constitutional head; the confidence-holding ministry is the real political executive.

ASCII MASTER FLOW – PANEL 2/9: Appointment, tenure, oath, conditions and immunity

ENTRY

President appoints by warrant -> Indian citizen + 35 years -> Article 159 oath before HC CJI or the senior-most available judge.

CONDITIONS

no Parliament/State-legislature seat | no other office of profit | protected emoluments.

TENURE

nominal five years + President's pleasure + resignation to President + hold office until successor.
Pleasure does not convert the office into an ordinary Union employee.

ARTICLE 361

personal immunity for official acts while remedies against government action remain available;
criminal proceedings cannot continue during the term; civil notice rules are distinct.

ASCII MASTER FLOW – PANEL 3/9: Executive, legislative, financial, judicial and statutory powers

EXECUTIVE

appoint CM; appoint ministers on CM advice; appoint Advocate General and specified authorities.

LEGISLATIVE

summon, prorogue, dissolve Assembly; address; nominate where text permits; assent/reserve/return.

FINANCIAL

recommend Money Bill and demands; cause budget to be laid; use Contingency Fund under law.

JUDICIAL

Article 161 clemency for offences within State executive field; judicial review survives.

STATUTORY ROLE

Governor as university Chancellor exists only where the relevant State statute so provides.
It is not an inherent power flowing from Articles 153-167.

ASCII MASTER FLOW – PANEL 4/9: Aid and advice with a narrow, reviewable discretion field

DEFAULT

Shamsher Singh (1974) -> Governor ordinarily acts on ministerial aid and advice.

BOUNDED EXCEPTIONS

hung House formation | floor-test trigger on objective material | Bill reservation
| Article 356 report | express constitutional or necessary situational discretion.

SESSION CONTROL

Nabam Rebia (2016) -> Articles 174-175 ordinarily advice-bound.

Subhash Desai (2023) -> no floor test merely to arbitrate an internal party dispute.

The Speaker-removal issue from Nabam Rebia (2016)

was referred in Subhash Desai (2023) and remains pending.

REVIEW

discretion is not personal political preference; relevance, purpose and objective material matter.

ASCII MASTER FLOW – PANEL 5/9: Government formation, floor test, dismissal and dissolution

WINNING ASSEMBLY

invite person most likely to command confidence -> early floor test -> no secret Raj Bhavan count.

LOSS OF MAJORITY

objective material -> floor test as ordinary constitutional forum.

S.R. Bommai (1994) -> majority normally proved in House; Article 356 is reviewable.

Subhash Desai (2023) -> factional dissent alone cannot justify a floor test.

DISMISSAL / DISSOLUTION

ministry losing a floor test may resign or face dismissal;

dissolution advice is not mechanically binding

when an alternative government is feasible.

Rameshwar Prasad (2006) -> speculative horse-trading material

cannot justify pre-emptive dissolution.

ASCII MASTER FLOW – PANEL 6/9: Articles 200-201: assent, return, reservation and current control

ARTICLE 200 OPTIONS

assent | withhold | return a non-Money Bill once | reserve for President.

Mandatory reservation applies where the Bill endangers the High Court's constitutional position.

AFTER RECONSIDERATION

the Governor cannot return the same Bill again; reservation questions remain text-specific.

ARTICLE 201

President may assent, withhold, or direct return of a non-Money Bill through the Governor.

CURRENT CASE CONTROL

State of Tamil Nadu v. Governor of Tamil Nadu (2025)

-> timelines and deemed assent used on the facts.

In re Assent, Withholding or Reservation of Bills (2025): advisory and non-binding;

no rigid timelines or automatic deemed assent, but prolonged unexplained inaction is reviewable.

ASCII MASTER FLOW – PANEL 7/9: Ordinance necessity and clemency limits

ARTICLE 71: ORDINANCE

legislature not in session as constitutionally required + immediate action necessary
-> Act-like force -> laying -> ceases six weeks after reassembly unless approved earlier.

RE-PROMULGATION CONTROL

D.C. Wadhwa (1986) -> routine serial re-promulgation is a fraud on the Constitution.
Krishna Kumar Singh (2017) -> laying is mandatory; satisfaction is reviewable;
legislative supremacy bars automatic enduring effects of every lapsed ordinance.

ARTICLE 161

State-field offences; advice-bound clemency; relevant-material and non-arbitrariness review.
Unlike Article 72, it has no court-martial limb and no independent Union-law offence limb.

ASCII MASTER FLOW – PANEL 8/9: Chief Minister, State Council, Advocate General and Chancellor

CHIEF MINISTER

Governor appoints -> prove Assembly confidence -> choose portfolios/ministers
-> coordinate policy -> advise sessions/dissolution -> communicate under Article 167.

STATE COUNCIL

collectively responsible to Assembly
| minister individually holds office during Governor's pleasure,
constitutionally mediated by CM advice and collective responsibility.

91ST AMENDMENT

ministry cap = 15% of Assembly strength; minimum 12; defector-minister bar.
Tribal Welfare Minister requirement applies to the constitutionally specified States.

ADVOCATE GENERAL

Article 165 law officer; qualifications of a High Court judge; advises State government.

CHANCELLOR

State-statute office only; powers and advice rules vary with the governing State law.

ASCII MASTER FLOW – PANEL 9/9: Federal neutrality, commission reforms, traps and answer spine

FAULT LINES

Union appointment + pleasure tenure + State-facing powers -> risk of partisan perception.

SARKARIA / PUNCHHI ROUTE

eminent detached appointee | CM consultation | secure convention | floor-test priority
| reasoned Article 356 material | restrained assent/reservation | post-tenure neutrality.

PRELIMS FIREWALL

Governor elected? NO | five-year term guaranteed? NO | discretion general? NO
Chancellor constitutional? NO | Money Bill returnable? NO | Article 361 = State immunity? NO.

MAINS SPINE

state textual power -> advice default -> exceptional trigger -> case with year
-> federal-risk counterpoint -> commission reform -> neutral constitutional-umpire conclusion.